



1 PASSAIC AVENUE • FAIRFIELD, NJ 07004 • TOLL FREE: (877) 527-4422 • FAX: (877) 526-4422

Date: **February 4, 2022**To: **I A Z CORPORATION DBA MINUTEMAN PRESS UPTOWN
4302 GIRARD AVE N
MINNEAPOLIS, MN 55412**

Fax #:

From: **KERRY STANSFIELD**E-mail: **fbrown@minutemandpress.com**

THANK YOU for leasing your equipment through Highland Capital. Your lease documents are attached.

1. Please sign and initial the attached documents as indicated **WHERE THE "X" APPEARS ON ALL PAGES.**
2. Provide us with your advance payment of \$5,875.00 (plus applicable tax) plus a **documentation fee of \$250.00.**
3. PLEASE **CHOOSE ONE** OF THE FOLLOWING PAYMENT OPTIONS:

S E L E C T O N E	{	Option #1:
		<u> x </u> I authorize HCC to initiate a ONE-TIME AUTOMATIC DRAFT FROM MY CHECKING ACCOUNT FOR THE ADVANCE PAYMENT ONLY. (You will receive a monthly invoice for future payments and will be required to write HCC a check each month for payments.)
		Option #2:
		<u> </u> I authorize HCC to initiate AUTOMATIC DRAFT FROM MY CHECKING ACCOUNT FOR ALL FUTURE MONTHLY PAYMENTS AND, IF APPLICABLE, THE ADVANCE PAYMENT.
Please include a copy of signers drivers license and tax exemption certificate, if applicable, along with the return of the documents		

Please SIGN THE AUTHORIZATION BELOW and send a copy of a VOIDED check with the lease documents. HCC will debit your account based on the selection indicated above. The funds will be withdrawn electronically. Be sure to record the debit entry/(ies) accordingly.

AUTOMATIC DEBIT AUTHORIZATION

The above named Lessee (hereinafter "Lessee") hereby authorizes Highland Capital Corp., as Lender, its successors and assigns (hereinafter "HCC"), to initiate the above-indicated debit (withdrawal) entry/(ies) to Lessee's bank account at the depository/ bank (hereinafter "BANK") as indicated on the enclosed copy of my VOIDED check. Lessee authorizes the BANK to debit the same to such account. Lessee agrees that the amount of each debit should be the amount Lessee owes to HCC on the above Agreement account on the date HCC initiates such debit. Lessee understands and agrees that if the item is returned unpaid (insufficient or uncollected funds) on the debit entry date, HCC will charge Lessee a return fee in accordance with HCC's policy then in effect. Lessee agrees to be bound by the National Automated Clearing House Association's (NACHA) Operating Rules.

Authorized Signature: _____

DocuSigned by:
Frank Brown
C93EBBCFCEFF424

47-2277062

(Authorized Signor for the checking account to be debited)

Hennepin

4. Federal tax ID# _____ What County are you located in? _____

5. Upon satisfactory completion of the terms and conditions of the lease agreement, the lessee shall have the following options:

- (a) Purchase the equipment contained in the lease for \$1.00 (plus applicable tax) on an "AS IS" and "WHERE IS" basis. Lessor makes no representations or warranties of any kind with respect to the equipment, including but not limited to its merchantability or fitness for a particular use;
- (b) Return the equipment to Lessor in accordance with the terms outlined in the lease agreement.

Documents will be submitted electronically; otherwise**Please fax documents to 877-526-4422 and mail to:****1 Passaic Ave., Fairfield NJ 07004****Phone: 877-527-4422****IMPORTANT INFORMATION ABOUT ESTABLISHING A RELATIONSHIP WITH LESSOR**

To help the United States Government fight terrorism and money laundering, Federal law requires us to obtain, verify, and record information that identifies each person or business that opens an account or establishes a relationship. What this means for you: when you open an account or establish a relationship, we will ask for your name, street address, date of birth, and identification number, such as a social security number or taxpayer identification number. For businesses, we will ask for the business name, street address and tax identification number. Federal law requires us to obtain this information. We may also ask to see your driver's license or other identifying documents that will allow us to identify you.

Equipment Lease Agreement

FULL LEGAL NAME AND ADDRESS OF THE LESSEE I A Z CORPORATION DBA MINUTEMAN PRESS UPTOWN 4302 GIRARD AVE N MINNEAPOLIS, MN 55412		NAME AND ADDRESS OF EQUIPMENT SUPPLIER FUJIFILM NORTH AMERICA CORPORATION 200 SUMMIT LAKE DR VALHALLA, NY 10595
QTY 1	EQUIPMENT DESCRIPTION: XEROX IRIDESSE PRODUCTION PRESS	INITIAL LEASE TERM: 60 MONTHS 60 MONTHLY RENTAL PAYMENTS OF \$5,875.00 (Plus applicable taxes) ADVANCE PAYMENT: \$ 5,875.00 APPLIED TO FIRST MONTH'S PAYMENT
Equipment Location (if different than above) : 4026 Washington Ave N, Minneapolis MN 55412		

TERMS AND CONDITIONS

The words YOU and YOUR mean the Lessee. The words WE, US, and OUR refer to the Lessor. The terms and conditions on the following page (page 2) are made a part hereof.

- 1. RENTAL:** We agree to rent to you and you agree to rent from us the equipment described herein. You promise to pay us the rent as shown above. The parties intend this Lease to be a Finance Lease under Article 2A of the Uniform Commercial Code ("UCC"). **THIS LEASE IS NOT CANCELABLE.** If this Lease is provided to you electronically and you enter into this Lease electronically, your electronic signature shall constitute your acknowledgment to do business electronically and receive all related documents and records electronically.
- 2. TERM AND RENT:** The term shall commence on the day that any of the Equipment is delivered to you ("the Commencement Date"). Rent shall be payable in advance, commencing on the Commencement Date and payable the same day every month thereafter until all amounts are fully paid. Lessee's obligations shall be absolute and unconditional without any abatement, set-off, defense or claim for any reason. If any payment hereunder is not made by you when due, you will be charged a late fee of ten percent (10%) of the amount of such payment, plus interest on such amount at the rate of 1.15% per month from the due date until the date paid, but in no event more than the maximum rate permitted by law.
- 3. DELIVERY AND ACCEPTANCE; FAX LEASE:** Your confirmation to us, by telephone or other means, of the delivery of the Equipment shall constitute your acknowledgment that you have inspected the Equipment, have found it to be satisfactory in all respects and that you accept the Equipment. A facsimile or electronic version of your signature on this Lease when received by us shall be binding upon you, for all purposes, as if originally signed. You and We agree that the version of this Lease containing our original or electronic and your facsimile or electronic signature shall constitute the original authoritative version.
- 4. NO WARRANTIES:** We are renting the Equipment to you "AS IS." **WE MAKE NO WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WARRANTIES OF MERCHANTABILITY, OR FITNESS FOR A PARTICULAR PURPOSE.** We transfer to you for the term of this Lease any warranties made by manufacturer or supplier to us. You have selected the Supplier and the Equipment based solely on your independent evaluation. NEITHER SUPPLIER NOR ANY AGENT OF SUPPLIER IS AN AGENT OF LESSOR OR IS AUTHORIZED TO WAIVE OR MODIFY ANY TERM OR CONDITION OF THIS LEASE.
- 5. OWNERSHIP, REDELIVERY AND RENEWAL:** We are the owner of the Equipment. If this Lease is deemed to be a security agreement, you grant us a security interest in the Equipment and all proceeds therefrom. Any Equipment pledged under any other agreement between you and us and/or our parent affiliates, subsidiaries or any entity controlling or controlled by or under common control of us, shall secure your obligations hereunder. You hereby authorize us to file UCC Financing Statements, to sign such statements, grant us the right to execute your name thereto and agree to pay for such filings. Unless you have been granted a \$1.00 purchase option hereunder, you shall no more than one hundred eighty (180) days but not less than one hundred twenty (120) days prior to the end of the initial term or any renewal term of this Lease you shall give us written notice of your intent to return the Equipment to us or purchase the Equipment for the purchase option indicated herein or on any rider hereto. Provided you have given such timely notice, you shall purchase the Equipment or return the Equipment to us at your cost, in good condition and working order in a manner and to a location designated by us. If you fail to so notify us, or having notified us, you fail to return the Equipment as provided herein, or fail to remit the purchase option at the end of the term, this Lease shall renew for additional terms of 30 days each at a periodic rent equal to 100% of the rent provided herein.
- 6. RISK OF LOSS AND INSURANCE:** You are responsible for installing and keeping the Equipment in good repair, condition and working order and for protecting the Equipment from damage and loss of any kind. If the Equipment is damaged or lost, you agree to continue to pay. You will obtain adequate property damage and public liability insurance covering the Equipment and its use during the term of this Lease, such insurance policies to name us as loss payee and additional insured. You agree to provide us certificates or other evidence of insurance. If you do not, you agree that we have the right but not the obligation to obtain such insurance, in which event you agree to pay us all related premiums, interest up to 1.5 % per month and any fees, charges and profits to us. You agree to arbitrate any dispute regarding the foregoing, under the rules of the AAA in Paterson, NJ.
- 7. INDEMNITY:** We are not responsible for any losses, injuries, damages and liabilities caused by the Equipment or any use thereof. You agree to reimburse us for and to defend us against any claims for losses or injuries (including reasonable attorney's fees and costs) caused by the Equipment or use thereof.
- 8. TAXES AND FEES:** You agree to pay us when due or reimburse us for all taxes, fees and penalties relating to use or ownership of the Equipment or to this Lease, imposed, levied or assessed by any state, federal or local government or agency, including any taxes to be paid up front. We may assess a fee of for administering any personal property taxes. If the Lease has a \$1.00 purchase option, you agree to file and pay all personal property taxes in the proper jurisdiction. If you fail to do so and we are assessed property taxes, you agree to reimburse us for such taxes. You are responsible for advising us if you are tax exempt. You agree to pay us a nonrefundable origination fee of \$ 250.00 in connection with this Lease.
- 9. LOCATION OF EQUIPMENT:** You will keep and use the Equipment only at your address shown above and you will not move the Equipment from that address without our written prior consent. You agree that the Equipment will be used for business purposes only.
- 10. DEFAULT:** If you (a) fail to pay any amount hereunder when due; or (b) fail to perform any covenant in this Lease after 10 days written notice; or (c) default under any obligation or agreement with our parent, affiliates, subsidiaries or any entity controlling or controlled by or under common control with us; or

LESSEE INITIALS:

(d) become insolvent, make an assignment for the benefit of creditors, file bankruptcy or a receiver, trustee, conservator or liquidator is appointed for you, you shall be in default hereunder.

11. **REMEDIES:** If you default, we may do one or more of the following: (i) recover from you all amounts then due under this Lease plus the present value of (x) the sum of the rent payments for the unexpired term of this Lease and (y) the anticipated value of the Equipment at the end of the initial term or renewal term of the Lease, all discounted at the rate of 6% per annum; (ii) similarly accelerate any other agreements between us and/or our parent, affiliates, subsidiaries or any entity controlling or controlled by, or under common control with us; (iii) require you to return all of the Equipment, at your expense, to a place reasonably designated by us, or take the Equipment, in which case we will not be held responsible for any losses directly or indirectly arising out of, or by reason of the presence and/or use of any and all proprietary information residing on or within the Equipment, and to lease or sell the Equipment or any portion thereof, and to apply the proceeds, less reasonable selling and administrative expenses, to the amounts due hereunder; (iv) charge you for expenses incurred in connection with the enforcement of our remedies including collection costs, reasonable attorney's fees and court costs. You shall also be liable for any post judgment attorneys' fees. All our remedies are cumulative and may be exercised either concurrently or separately. Any failure or delay by us to exercise any right shall not operate as a waiver of any right, other or future rights or to modify the terms of this Lease.

12. **ASSIGNMENT:** YOU HAVE NO RIGHT TO SELL, TRANSFER, AND ASSIGN OR SUBLEASE THIS LEASE OR THE EQUIPMENT. We may sell, assign or transfer this Lease, without notice. You agree that if we sell, assign or transfer this Lease, the new owner will have the same rights and benefits that we have now and will not have to perform any of our obligations, for which we remain responsible. You agree that the right of the new owner will not be subject to any claims, defenses, or set offs that you may have against us.

13. **PERFORMANCE OF LESSEE'S OBLIGATIONS:** If you fail to comply with any provision herein, we shall have the right, but not the obligation, to act on your behalf upon (10) days' notice. You agree to reimburse us for any monies that we expend, at the time of the next rent payment, together with interest of 1.5% per month. We shall have the right of offset against amounts that may be due us now or in the future to you, against amounts due under this Lease or any other obligation you have with us.

14. **GOVERNING LAW; CONSENT TO JURISDICTION; WAIVERS:** THIS LEASE SHALL BE GOVERNED BY AND CONSTRUED ACCORDING TO NEW JERSEY LAWS AND AS APPLICABLE, ELECTRONIC SIGNATURES IN GLOBAL AND NATIONAL COMMERCE ACT ("ESIGN"). YOU AGREE TO BE SUBJECT TO SUIT IN THE NEW JERSEY STATE AND FEDERAL COURTS, CONSENTING TO SUCH JURISDICTION, PROVIDED NOTHING IN THIS SECTION SHALL BE CONSTRUED TO LIMIT THE JURISDICTIONS IN WHICH SUIT MAY BE FILED BY ANY PARTY. YOU WAIVE TRIAL BY JURY IN ANY ACTION. YOU HEREBY WAIVE ANY AND ALL RIGHTS AND REMEDIES GRANTED YOU BY SECTION 2A 508 THROUGH 2A 522 OF THE UNIFORM COMMERCIAL CODE.

15. **CUSTOMER P.O.:** You agree that any Purchase Order issued by you to us covering the Equipment, is issued for authorization purposes and your internal use only, and none of its terms and conditions shall modify the terms of this Lease.

16. **PRAUTHORIZED DEBIT PAYMENTS:** Any payment made by check which has been faxed or sent electronically to Lessor and authorized by Lessee to be used to create an ACH debit, may be used to process an electronic payment from your account. You hereby authorize us to initiate electronic debit payments from your FDIC-insured bank account. Funds may be drawn from your bank account for any amounts due on this Lease from and after the date of default (as defined herein).

17. **ENTIRE LEASE:** You agree that we may insert or correct missing information on this Lease including your legal name and the Equipment's description, serial number and location, otherwise, this Lease contains the entire arrangement between you and us and no modification of this Lease shall be effective unless in writing and signed by both parties. You agree that we may adjust your payment upward or downward by an amount not to exceed 10% if the actual cost of the Equipment exceeds or is less than the initial estimate. You authorize us to execute documents to effect such adjustments. You shall provide to us: (a) within 120 days from the close of your fiscal year and within 45 days of the end of each quarter of your fiscal year, a copy of your financial statements, prepared in accordance with generally accepted accounting principles; (b) any other information we reasonably request.

LESSOR:

HIGHLAND CAPITAL CORPORATION
1 Passaic Ave., Fairfield NJ 07004

By:

Authorized Signature

Title: _____ Date: _____

LESSEE (full legal name):

I A Z CORPORATION DBA MINUTEMAN PRESS UPTOWN

By:

DocuSigned by:

Frank Brown

C93E9BCFCEFF424

Authorized Signature

Title: **President** Date: **2/8/2022**

LEASE GUARANTY

I unconditionally guaranty that Lessee will make all payments and perform all other obligations hereunder until this Lease is satisfied. My obligation shall be continuing and direct. I waive any notice of Lessee's default, acceptance demand and protest. I consent to any modifications to the Lease. **I AGREE TO BE SUBJECT TO NEW JERSEY STATE LAW AND AS APPLICABLE, ELECTRONIC SIGNATURES IN GLOBAL AND NATIONAL COMMERCE ACT ("ESIGN") AND TO BE SUBJECT TO SUIT IN THE NEW JERSEY STATE AND FEDERAL COURTS, CONSENTING TO SUCH JURISDICTION. I WAIVE TRIAL BY JURY IN ANY ACTION.** This Guaranty is not assignable, shall be binding upon my permitted successors and assigns and shall inure to the benefit of Lessor's successors and assigns. If there is more than one Guarantor, our obligations are joint and several. If I have been provided with an electronic version of this lease and I enter into this lease guaranty electronically, my electronic signature affixed hereto shall be binding for all purposes and shall constitute my agreement to do business electronically and to receive all related documents and records electronically.

DocuSigned by:

X

Frank Brown

2/8/2022

FRANK BROWN No Title

Date

X

JULIE BROWN No Title

Date



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HIGHLAND CAPITAL CORP. (LESSOR)

Lease Agreement No.
Schedule No.

FULL LEGAL NAME AND ADDRESS OF LESSEE:

NAME AND ADDRESS OF EQUIPMENT SUPPLIER:

I A Z CORPORATION
DBA MINUTEMAN PRESS UPTOWN
4302 GIRARD AVE N
MINNEAPOLIS, MN 55412

FUJIFILM NORTH AMERICA CORPORATION
200 SUMMIT LAKE DR
VALHALLA, NY 10595

EQUIPMENT DESCRIPTION

XEROX IRIDESSE PRODUCTION PRESS

ACKNOWLEDGMENT & ACCEPTANCE OF DELIVERY BY LESSEE

We hereby acknowledge that, on the date indicated below, the equipment described above, as more fully set forth in our lease agreement and schedule, has been properly installed, is operating satisfactorily and is irrevocably accepted by the Lessee.

We will make all payments to Lessor or its order. We agree that any rights we may have against the supplier or manufacturer of the equipment will not be asserted as a counterclaim or defense against Lessor.

By signature below, Highland Capital Corp. is authorized to make payment to the supplier(s) of the equipment described above.

FULL LEGAL NAME OF LESSEE:

AUTHORIZED SIGNATURE OF LESSEE:

I A Z CORPORATION DBA MINUTEMAN PRESS UPTOWN

X

DATE ACCEPTED:

PRINT NAME: FRANK BROWN

TITLE:



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INSURANCE REQUIREMENT:

Please have your insurance agent [send evidence of insurance to Highland Capital Corp. c/o:](#)

American Lease Insurance
654 Amherst Road, #317
Sunderland, MA 01375
(800) 625-7038

Please reference your account numbers. (Your account # will be available once the contract commences)

Your agent must provide written evidence of property insurance (using ACORD 23 or its equivalent) that:

1. Provides "special form" coverage that includes theft
2. Shows a "Lender's Loss Payable" endorsement (using ISO form "loss payee")
3. Has the current effective dates of your coverage

Your agent must also provide evidence of public liability insurance (using ACORD 23 or its equivalent) and must also name as "insured" on an Additional Insured-Lessor of Leased Equipment endorsement "Highland Capital Corporation and its assignors and assignees" with minimum liability limits of \$300,000.00 each occurrence and \$600,000.00 general aggregate.

To expedite receipt, please fax this letter to your agent so they may fax or email such evidence to American Lease Insurance at (888) 228-8430 or e-mail to evidence@aliac.net

If you should have any questions, please feel free to call.